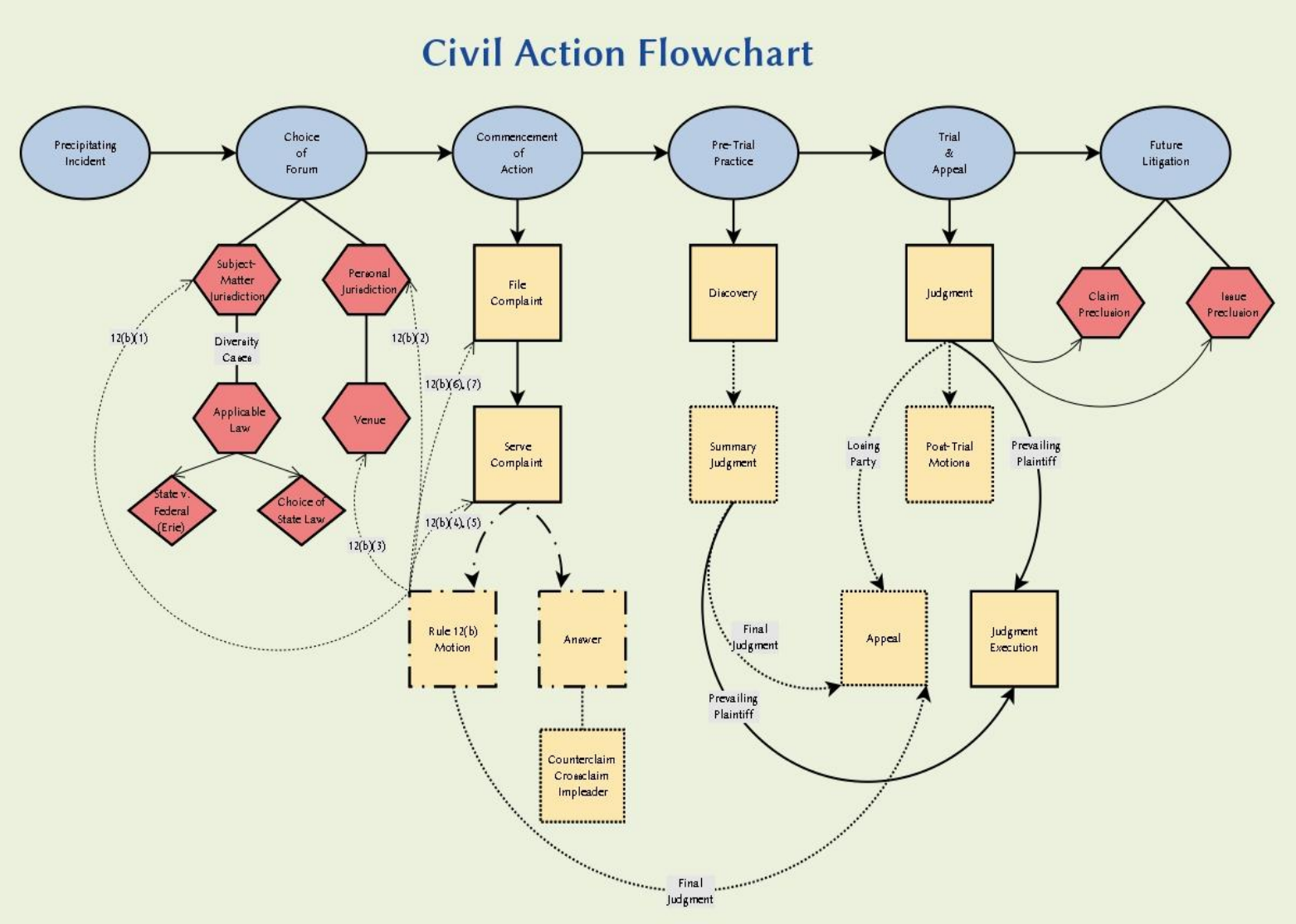
亚马逊学习资源

海外知识产权诉讼中，中国卖家如何抗辩及应对

美国民事诉讼流程图



图片来源：https://www.assignmentpoint.com/arts/law/code-civil-procedure.html

亚马逊学习资源
大成 DENTONS

起诉环节（Filing)：起诉状和传票

IN THE UNITED STATES DISTRICT COURT
FOR THE [redacted] DISTRICT OF [redacted]

[redacted]	)	
	)	
v.	)	Case No. [redacted]
	)	
THE PARTNERSHIPS and UNINCORPORATED ASSOCIATIONS IDENTIFIED ON SCHEDULE "A,"	)	Judge:
	)	Magistrate:
	)	
	)	
	)	

COMPLAINT

Plaintiff [redacted] hereby files this Complaint for, *inter alia*, trademark infringement, counterfeiting, copyright infringement and related claims against Defendants, on personal knowledge as to Plaintiffs' own activities and on information and belief as to the activities of others:

The Parties

1. [redacted] is a Delaware Limited Liability Company that maintains its principal place of business at 3[redacted]

2. Defendants identified on Schedule "A" are all believed to be individuals and unincorporated business associations who, upon information and belief, reside in foreign jurisdictions. The true names, identities and addresses of Defendants are currently unknown.

3. Defendants conduct their illegal operations through fully interactive commercial websites registered with registrars in the United States and other foreign jurisdictions ("Infringing Websites"). Each Defendant targets consumers in the United States, including the

AO 440 (Rev. 05/00) Summons in a Civil Action

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF [redacted]

SUMMONS IN A CIVIL CASE

[redacted]

V.

THE PARTNERSHIPS and UNINCORPORATED ASSOCIATIONS IDENTIFIED ON SCHEDULE "A"

CASE NUMBER: [redacted]

ASSIGNED JUDGE: Hon. Matthew F. Kennelly

DESIGNATED MAGISTRATE JUDGE: Hon. Young B. Kim

TO: (Name and address of Defendant)

11apparel and all other Defendants identified in the Complaint

YOU ARE HEREBY SUMMONED and required to serve upon PLAINTIFF'S ATTORNEY (name and address)

David [redacted]
Law Office of David [redacted]
805 [redacted] Street, Suite [redacted]
[redacted] Park, [redacted]

an answer to the complaint which is herewith served upon you, 21 days after service of this summons upon you, exclusive of the day of service. If you fail to do so, judgment by default will be taken against you for the relief demanded in the complaint. You must also file your answer with the Clerk of this Court within a reasonable period of time after service.

THOMAS G. BRUTON, CLERK

Yulonda Thomas

(By) DEPUTY CLERK

December [redacted] 2019

DATE

起诉环节的应对(Answer)

亚马逊学习资源

- 要求驳回对方主张（motion to dismiss）
  - 管辖权
    - 对事管辖权（Subject matter jurisdiction）
      - 联邦管辖权 vs 州管辖权：美国宪法或联邦法律规定事项由联邦法院管辖，其余由州法院管辖
    - 属人管辖权（Personal jurisdiction）
      - 长臂管辖（Long-Arm Statute）：最小限度接触原则（minimum contact rule）
      - 可放弃（waivable）
    - 辖区（Venue）
      - 案件应由最适合的辖区法院管辖，辖区不合适的需要移送案件（*Forum non conveniens*）
  - 针对送达
    - （《海牙送达公约》）
    - 原告必须等待6-12个月，保证他国中央司法机关有足够的时间审查并送达文书
    - 不得直接通过电子邮件送达

大成 DENTONS

起诉环节的应对

亚马逊学习资源

- 回应对方的指控(present any defense)
  - 商标侵权抗辩举例：
    - 商标退化（Genericide):Yoyo, aspirin, nylon, thermos, [Frisbee（飞盘），Hula-hoop（呼啦圈）]?
    - 指示性使用(Normative use)：for (KTM), compatible with（适用于）(Philips)
    - 描述性使用(Descriptive use)：HYGRADE， sweet-tart，Safari
- 提起反诉(file a counterclaim)
  - 不得提交虚假诉求
  - 不得滥用司法程序

大成DENTONS

临时措施及其应对：TRO & PI

亚马逊学习资源

UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF [redacted]
EASTERN DIVISION

[redacted]

Plaintiff,

v.

[redacted] and et al.,

Defendants.

Case No. [redacted]

SEALED TEMPORARY RESTRAINING ORDER

Before the Court is Plaintiff [redacted] ("Plaintiff") Ex Parte Motion for Entry of a Temporary Restraining Order, including a Temporary Injunction, Temporary Asset Restraint, and Expedited Discovery, and Motion for Electronic Service of Process Pursuant to Fed. R.Civ.P.4(f)(3) (the "Motions") against defendants identified in Schedule A to the Amended Complaint and attached hereto (collectively, the "Defendants"), enjoining Defendants from manufacturing, importing, distributing, offering for sale, or selling counterfeit U.S. trademarks No. [redacted]871, 6[redacted]730, and [redacted]750 for "[redacted]" (collectively the "[redacted] Marks") products. The Motion is GRANTED.

This Court further finds that it has personal jurisdiction over the Defendants since the Defendants directly target their business activities toward consumers in the United States, including Illinois. Specifically, Defendants are reaching out to do business with Illinois residents by operating one or more commercial, interactive Internet stores through which Illinois residents can purchase products using infringing and counterfeit versions of the [redacted] Trademarks.

This Court also finds that issuing this Order without notice pursuant to Rule 65(b)(1) of the Federal Rules of Civil Procedure is appropriate because Plaintiff has presented specific facts

大成 DENTONS

临时措施及其应对：TRO & PI

亚马逊学习资源

- Temporary Restraining Order: 临时禁令
  - 类似我国诉前保全措施
  - 依据原告单方面申请作出，无被告出席的听证，一般持续14天，可申请延期
- Preliminary Injunction: 初步禁令
  - 类似我国诉中保全措施
  - 持续至下达判决或裁定之日
  - 被告可以就原告的禁令申请提交反对意见，法院组织双方听证
  - 通过提交有效反对理由，可以减少被冻结的资产

大成DENTONS

缺席状态 vs 缺席判决

- 缺席状态≠缺席判决
  - 缺席是指被告丧失了提交辩护材料的窗口期的状态
  - 缺席判决是由于被告缺席，放弃了辩护权利，法院默认原告诉求的判决
- 缺席可以通过应诉并提供“合理理由”解除
  - 合理理由判断因素包括：
    - 是否故意缺席
    - 撤回缺席认定是否会损害相对方
    - 缺席方是否提交合理答辩意见
- 缺席判决需要通过动议申请无效
  - 常见有效理由：
    - 无效或瑕疵送达
    - 合理理由缺席

亚马逊学习资源

其他美国特色诉讼环节

亚马逊学习资源





- 证据开示（Discovery）：完全举证，可强迫对方举证，耗时较长
- 简易判决（Summary Judgment）：针对没有主要事实争议的争议焦点直接援引法律作出判决
- 上诉（Appeal）：可针对诉讼进程中的判决、裁决分别单独上诉